



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM AP-01

FILED WITH THE APPELLATE CLERK
REV. 08/2026

IN THE APPELLATE COURT OF FLORIDA
DIVISION OF CRIMINAL AND CIVIL APPEALS

NOTICE OF APPEAL OF SENTENCE

Appellate Court of Florida - Division of Criminal Appeals

APPELLANT 	CASE NUMBER (UCN) e.g. A-2026-000123 (APPELLATE COURT)
VS. Full name of party e.g. Marcus D. Reeves	APPELLEE
DIVISION e.g. Criminal Appeals 	
JUDGE e.g. Hon. Hollis T. Marren 	
Divisions: Criminal Appeals Civil Appeals Traffic Appeals	

HOW TO USE THIS FORM

File this within 30 days of the judgment and sentence you are challenging. The deadline cannot be extended. Attach a copy of the judgment (Form CR-10) and the ruling being appealed (Form JR-01). An appeal reviews the record for legal error - it is not a new trial. Every box is blank and ready to type in; anything you type appears in black. The small grey "e.g." notes beside each label are only examples of what belongs there.

CASE CAPTION

APPELLATE CASE NO. e.g. A-2026-000117 	DIVISION e.g. Criminal 	DATE FILED e.g. 08/18/26 	LOWER COURT CASE NO. e.g. 26-CF-000418
DEFENDANT / APPELLANT e.g. Marcus D. Reeves 	USERNAME e.g. mreeves_cw 	CURRENTLY IN CUSTODY 	RELEASE DATE
APPELLEE e.g. The State of Florida 	TRIAL JUDGE e.g. Hon. Hollis T. Marren 	TRIAL DIVISION 	DATE OF SENTENCE

NOTICE OF APPEAL OF SENTENCE

The Defendant / Appellant hereby gives notice of appeal from the judgment and sentence entered in the lower court on the date stated above, and states as follows:

JUDGMENT BEING APPEALED

OFFENSE(S) OF CONVICTION e.g. Grand Theft Auto (203.1) 	DEGREE 	PLEA OR VERDICT e.g. Guilty plea
SENTENCE IMPOSED e.g. 5 years, suspended after 12 months 	FINE AND COSTS e.g. \$5,328.00 	PROBATION TERM e.g. 24 months

GROUND(S) FOR APPEAL

☐ The sentence exceeds the statutory maximum	☐ The sentence is disproportionate to the offense
☐ The Court failed to consider mitigating factors	☐ The Court considered an improper aggravating factor
☐ The Court departed from the guidelines without stated reasons	☐ The plea was not knowing, intelligent, or voluntary
☐ The plea agreement was not honoured by the Court	☐ Evidence was admitted that should have been suppressed
☐ The evidence was legally insufficient to convict	☐ The jury was improperly instructed
☐ The Court denied a meritorious motion	☐ Other (state below)

STATEMENT OF THE ISSUES PRESENTED FOR REVIEW

NUMBER EACH ISSUE. STATE IT AS A QUESTION THE APPELLATE COURT CAN ANSWER YES OR NO.

CONCISE STATEMENT OF THE FACTS RELEVANT TO THE APPEAL

ONLY THE FACTS THAT BEAR ON THE ISSUES ABOVE, WITH CITATIONS TO THE RECORD WHERE POSSIBLE e.g. The defendant was convicted of grand theft auto following a bench trial

PRESERVATION OF ERROR

FOR EACH ISSUE, STATE WHERE IN THE RECORD THE OBJECTION WAS MADE. UNPRESERVED ISSUES ARE REVIEWED ONLY FOR FUNDAMENTAL ERROR. e.g. Issue I was

RELIEF SOUGHT☐ **VACATE THE SENTENCE AND REMAND FOR RESENTENCING**

The conviction stands but the sentence must be imposed again by the lower court.

☐ **REDUCE THE SENTENCE**

The appellate court should correct the sentence directly.

☐ **VACATE THE CONVICTION AND SENTENCE**

The conviction itself cannot stand.

☐ **REVERSE AND REMAND FOR A NEW TRIAL**

Trial error requires the case to be tried again.

☐ **REVERSE AND DISCHARGE THE DEFENDANT**

The evidence was insufficient and the defendant may not be retried.

☐ **PERMIT WITHDRAWAL OF THE PLEA**

The defendant should be allowed to plead anew.

FILINGS AND REQUESTS ACCOMPANYING THIS NOTICE☐ Copy of the judgment and sentence (CR-10) attached☐ Transcript ordered (Form AD-07)☐ Motion for stay of sentence pending appeal☐ Request to proceed as an indigent (Form CR-09)☐ Oral argument requested☐ Copy of the ruling appealed (JR-01) attached☐ Record on appeal requested at public expense☐ Appellate bond requested☐ Request for appointment of appellate counsel☐ Expedited review requested**BOND AND STAY**

STAY REQUESTED

APPELLATE BOND AMOUNT

BOND POSTED

FILING FEE

e.g. \$300.00

FEE WAIVED

CERTIFICATE OF SERVICE: I certify that a copy of this Notice of Appeal was furnished to the Office of the State Attorney, to the lower tribunal, and to the Clerk of the Appellate Court on the date written below.

APPELLANT OR APPELLATE COUNSEL

e.g. Grant Whitlow

Bar number

PRINTED NAME

DATE

e.g. 09/10/26

APPELLATE CLERK

e.g. P. Nakamura, Deputy Clerk

Notice docketed

PRINTED NAME

DATE

e.g. 09/10/26

APPELLATE CLERK USE ONLY

DATE DOCKETED

PANEL ASSIGNED

e.g. Panel C

INITIAL BRIEF DUE

ANSWER BRIEF DUE

REPLY BRIEF DUE

RECORD DUE FROM LOWER COURT

ORAL ARGUMENT SET

STATUS

e.g. Briefing

NOTES

e.g. None

An appellate court does not hear new witnesses, accept new evidence, or reweigh the credibility of testimony. It decides only whether the lower court applied the law correctly to the record that already exists. Arguments raised for the first time on appeal are usually waived.